

Contentious Chamber

Decision on the merits 110/2023 of August 9, 2023

File number: DOS-2018-03496

Subject: Complaint against a municipal secondary school regarding the publication of disciplinary reports on one hand and a survey of students on the other hand

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Frank de Smet and Christophe Boeraeve, members;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Having regard to the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Having regard to the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Having regard to the documents in the file;
has made the following decision regarding:

The complainants:

Mr. X1, hereinafter "the first complainant"; Mrs. X2, hereinafter "the second complainant"; both represented by Me Stijn BUTENAERTS, whose office is located at Boulevard Léopold II, 180 in 1080 Brussels;

The defendant: the municipality Y, represented by its College of Mayor and Aldermen, hereinafter "the defendant"; represented by Me Alain BOUTEILLE and Me Stéphanie NGAY-KATALAY,

I. Facts and Procedure

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1.

The defendant is a municipality that acts as the organizing authority of the school concerned in the case at hand. In the documents of the file, the municipal school was in some cases specifically designated as an entity, without having been specifically identified as an element of the defendant as a municipality. As an educational institution, the school has several autonomous decision-making powers that are significant during the course of the events that led to the present procedure. In those cases where the educational institution acts or is designated as a distinct entity in the file, it is referred to as "the school of the defendant."

I.1.

The Complaint

2. On June 15, 2018, the complainants jointly filed a complaint with the Data Protection Authority (hereinafter "the DPA") against the defendant. At the time of the events described in the complaint, both complainants were employed at the school of the defendant.

3. The subject of the complaint concerns two alleged violations of the provisions of the GDPR, claimed by the complainants, which would involve personal data of the complainants:

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The first alleged violation concerns the publication on Smartschool of a series of minutes from the college, including two minutes from the College of Mayor and Aldermen dated February 12, 2015, and March 30, 2015, which concern the first complainant, in connection with an incident that led to his temporary suspension. The minutes contain incriminating statements from two teachers and a student regarding the first complainant named specifically. At a later stage, an appeal body is said to have annulled the decision of temporary suspension. However, the document containing this decision was not published on Smartschool.

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The second alleged violation concerns the publication on Smartschool of a survey conducted among students regarding the second complainant. The student survey was completed by 48 students and was conducted on December 15, 2017. The publication of the student survey took place on January 22, 2018.

4. Prior to the present complaint, the complainants exercised their rights, through a lawyer, by addressing the defendant and more specifically the school concerned of the defendant, by registered letter dated May 8, 2018. In this letter, the complainants expressed their grievances regarding the facts outlined above. The complainants also requested that the minutes of the first alleged violation concerning the first complainant be deleted within 5 working days. Furthermore, they put the defendant on notice for the damages suffered.

5. The school of the defendant responded to this registered letter on May 22, 2018. It stated that the College of Mayor and Aldermen had acknowledged the complainants' letter in a session on May 16, 2018, and had then decided, without prejudice to all rights and without any

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harmful recognition, to remove from Smartschool the minutes (concerning the first alleged violation).

6. The complainants felt that this response was insufficient and subsequently filed a complaint with the APD. Alongside this complaint procedure, the complainants wrote again to the defendant on September 5, 2018, in particular to ask several additional questions. They first inquired whether the school director at the time was obliged by the organizing authority to post the minutes of the College of Mayor and Aldermen on Smartschool. The complainants then referred to the defendant's regulation, which specifies that in the context of administrative publicity, a written request is required as a principle before one can exercise a right of access (namely access to the minutes regarding disciplinary law). According to this regulation, such access could also be denied when the privacy of a concerned individual is compromised.

7. The defendant responded to this letter on September 18, 2018, stating that no order had been given to post the minutes of the college on Smartschool. The minutes of the college were only transmitted to the directors of the communal schools for information, as an "internal" working document.

8. The complainants finally sent a last letter to the defendant on October 15, 2018, in which they assert that it follows from the defendant's letter of September 18, 2018, that the minutes of the college are purely and simply sent to the directors of all communal schools, even if the minutes have no relevance for a communal school. The complainants emphasize that the minutes of the college could contain sensitive information (in this case, the disciplinary procedure concerning the first complainant) and would therefore be protected under privacy legislation and the rules regarding administrative publicity. The complainants then ask the defendant how the facts related to the two alleged violations mentioned in the complaint to the APD can be reconciled with these last two. They also finally ask why the minutes of the college concerning a single school are (systematically) transmitted to all communal schools.

9. On July 4, 2018, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 of the LCA. Pursuant to Article 62, § 1 of the LCA, the complaint is then forwarded to the Contentious Chamber by the First Line Service.

I.2. The Investigation by the Inspection Service

10. On November 14, 2018, the Contentious Chamber decides to request an investigation from the Inspection Service, pursuant to Articles 63, 2° and 94, 1° of the LCA.

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11. On November 21, 2018, in accordance with Article 96, § 1 of the LCA, the request from the Litigation Chamber to conduct an investigation is transmitted to the Inspection Service, along with the complaint and the inventory of documents.

12. Prior to the inspection report, the Inspection Service of the APD posed questions to both the complainants and the defendant.

13. On October 11, 2019, the investigation by the Inspection Service is concluded, the report is attached to the file, and it is transmitted by the Inspector General to the President of the Litigation Chamber (Article 91, § 1 and § 2 of the LCA). The report first contains findings related to the subject of the complaint (within the framework of it). The Inspection Service supports the defendant's view that

the GDPR cannot apply to the first incident, as the facts date back to before May 25, 2018¹.

14. The report also contains findings that go beyond the subject of the complaint. The Inspection Service finds, in broad terms, the following elements:

15. First, regarding the obligation to document incidents as stated in Article 33, paragraph 5 of the GDPR and the risk-based approach, in accordance with Article 32 of the GDPR, the Inspection Service examined how the defendant handled the two incidents. Thus, in response to the Inspection Service's question about whether an incident record had taken place in the meantime, the defendant replies that "there have been no further incidents." The Inspection Service states that this is not an answer to the question and that it cannot therefore be concluded that the school concerned and/or the municipality have since implemented an incident recording as required by Article 33, paragraph 5 of the GDPR.

16. Second, regarding the examination of incidents in the sense of Article 33, paragraph 5 of the GDPR, the Inspection Service specifies that an appropriate examination is necessary in the interest of the affected individuals. However, the Inspection Service asserts that it does not have indications that the incidents were properly examined.

17. Third, regarding the obligation to notify the supervisory authority in the sense of Article 33 of the GDPR, the Inspection Service states that the incidents were not notified to the Data Protection Authority.

18. Fourth, regarding the obligation to inform in the sense of Article 13 (specifically paragraph 1, point a) of the GDPR), the Inspection Service first states that the municipality identifies itself as the data controller in its communication to the APD. The Inspection Service notes in this regard that there is no coherent reference to a single data controller and a single point of contact (for example, for the role of Data Protection Officer). As far as the aspects related to the right to data protection are concerned,

1 Date on which the GDPR came into force, see Article 99 of the GDPR.

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the defendant uses an "external e-gov assistance service" (this refers to company Z) and that the references to the defendant and this assistance service were not always clearly formulated, this results, according to the Inspection Service, in a violation of the obligation to provide information.

19. Fifthly, regarding the designation of a Data Protection Officer ("DPO") and the publication of their contact details as per Article 37, paragraph 1, point a) and Article 37, paragraph 7 of the GDPR, the Inspection Service states the following: "In the privacy statement of the defendant's school, there is reference to a 'privacy' email address of the defendant (the municipality), without specific mention of the person or service in question. However, the Inspection Service discovered that the DPO function was performed by the external e-gov assistance service to which the defendant is affiliated."

[Translator's note: the passages from the inspection report are free translations made by the translation service of the General Secretariat of the DPA, in the absence of an official translation]

20. Sixthly, regarding the registration of the DPO with the DPA as per Article 37, paragraph 7 of the GDPR, the Inspection Service specifies that no DPO has been notified for the defendant.

21. Seventhly, regarding the tasks performed by the DPO as per Article 39, paragraph 1 of the GDPR, the defendant had provided several documents to the Inspection Service. The inspection report states the following in this regard:

"The Inspection Service has no indication that the aforementioned employee of [the external e-gov assistance service] performs the tasks provided for in Article 39.1.b), d) and e) of the GDPR (monitoring compliance with the GDPR, cooperating with the DPA, acting as a contact point for the DPA).

No correspondence between the [defendant] and the DPA refers to any contact with the DPO. If the DPO has already been designated, the inspection finds that the tasks under Article 39.1.d) and e) were not fulfilled by the DPO."

22. Eighthly, regarding responsibility, the obligation of documentation and registration as well as the examination concerning incidents as per Article 5, paragraph 2 and Article 33, paragraph 5 of the GDPR, the Inspection Service first noted during its investigation that the ICT manager of the municipality had been informed of the two incidents. The Inspection Service states the following in this regard: "However, it cannot be demonstrated when this occurred or how, given that the notification was

made verbally according to the [defendant]."³ Furthermore, the defendant could not explain to the Inspection Service any agreement regarding timely notification and the follow-up (or "processing") of incidents affecting personal data protection. Finally, according to the Inspection Service, there is "no" evidence of the registration, examination, and follow-up of the incidents that were notified to the director, the ICT manager and/or the DPO.

I.3. The conclusions of the parties

23. On October 14, 2019, the Inspection Service's investigation report is closed and the file is transmitted to the Contentious Chamber. On November 12, 2019, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the file may be processed on the merits. Based on the report of the Inspection Service, the Contentious Chamber decides to split the file into two distinct cases:

1.
on the one hand, the Contentious Chamber will make a decision on the merits regarding the subject of the complaint;

2.
on the other hand, the Contentious Chamber will make a decision on the merits, following the findings made by the Inspection Service outside the scope of the complaint.

24. On November 13, 2019, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions was set for December 13, 2019, the deadline for the complainants' reply conclusions for December 31, 2019, and finally the deadline for the defendant's reply conclusions for January 17, 2020.

Regarding the findings going beyond the subject of the complaint, the deadline for receiving the defendant's response conclusions was set for January 17, 2020.

25. On December 16, 2019, the Contentious Chamber receives the defendant's response conclusions regarding the findings related to the subject of the complaint.

26. Regarding the facts, the defendant first claims that it is only aware of the first incident. According to the defendant, it was never informed of the second incident (except during the communication of the complaint and the initiation of the investigation by the DPA). The conclusions put forward by the defendant are as follows:

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The incidents do not fall within the scope of the GDPR as they both occurred before the GDPR came into force (May 25, 2018). The complaint concerns facts prior to May 25, 2018; these facts must therefore be examined in light of the privacy law⁴. In this context, according to the defendant, no administrative fine can therefore be imposed either;

⁴ Law of December 8, 1992 on the protection of privacy with regard to the processing of personal data. Decision on the Merits 110/2021 - 7/22

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The defendant also provides explanations regarding the circumstances related to the two incidents as well as the presumed (legal) qualification of these incidents;

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In conclusion, the defendant specifies that if the Data Protection Authority (DPA) considers the complaint to be well-founded, it requests the favor of suspension based on Article 100, § 1, 3° of the LCA.

27. On November 30, 2019, the Contentious Chamber receives the reply conclusions from the complainants who, regarding the findings related to the subject of the complaint, only address the applicable legislation. The complainants assert in this regard that the GDPR applies to all relevant facts and specify that the defendant does not make plausible the existence of legitimate purposes justifying the publications on Smartschool for the two incidents. Furthermore, the complainants particularly emphasize the absence of rectification of the elements concerning the disciplinary

procedure (the first incident), the absence of pseudonymization measures, as well as the consequences of the events and the harm that resulted, according to them (according to the complainants, "immaterial harm or damage to reputation"). Finally, the complainants also demand compensation and the imposition of "necessary administrative fines and sanctions."

28. On January 17, 2020, the Contentious Chamber receives the reply conclusions from the defendant regarding the findings related to the subject of the complaint:

- Regarding the applicable legislation, the defendant recalls that the GDPR cannot apply to facts prior to May 25, 2018. The facts fall under the scope of the privacy law;

- Regarding the first and second incidents, the defendant raises the same arguments as presented in its conclusions of December 16, 2019;

- Regarding the DPA's competence to grant compensation, the defendant asserts in this regard, subject to all rights and without any prejudicial acknowledgment, that it is not for the DPA to rule on the civil (or criminal) liability of the defendant.

29. On the same date, the Contentious Chamber also receives the reply conclusions from the defendant concerning the findings of the Inspection Service outside the scope of the complaint. The defendant first asserts, in general terms, that it can be qualified as a data controller for a large number of "public services," including the organization of education. In this context, the defendant specifies that the protection of privacy and personal data is a "priority" for it. The defendant argues the following regarding these specific findings of the Inspection Service:

- Regarding the recording of incidents (documentation obligation under Article 33, paragraph 5 of the GDPR and risk-based approach of Article 32 of the GDPR) and the obligation to notify the DPA (Article 33 of the GDPR): the defendant emphasizes

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that it was only confronted with a single incident on October 15, 2019, concerning the hacking of an inbox. According to the defendant, this incident was immediately recorded in the incident register and notified to the Data Protection Authority (DPA) within the legal timeframe. A solution was also found, and the passwords of all affected users as well as the passwords of the servers were changed.

- Regarding the examination of incidents (Article 33, paragraph 5 of the GDPR): the defendant claims that it documents any breach of personal data in accordance with Article 33, paragraph 5 of the GDPR. The defendant specifies that it uses an incident register and communicates incidents to the DPA in detail. The defendant states: "This proves that the defendant has implemented an effective procedure that allows it to quickly detect incidents and respond in the event of a data leak." [Translator's Note: all quoted passages from the defendant are free translations made by the translation service of the General Secretariat of the DPA, in the absence of an official translation.] Furthermore, the defendant also states that it has developed an information security plan, which is inspired by the activities of the concerned school.

- Regarding the information obligation concerning the name and address of the data controller (Article 13, paragraph 1, point a) of the GDPR): the defendant acknowledges in its conclusions that "the original privacy statement was not clear or complete." The defendant specifies that it has made the necessary adjustments - in consultation with the external e-gov support service that also provides the DPO - so that the privacy statement is now more accessible. According to the defendant, on the website of the defendant's school, the municipal administration is now clearly designated as the data controller.

- Regarding the findings related to the Data Protection Officer (DPO): in 2015, the defendant approved the awarding of the contract to the e-gov support service. The contract mentions the procurement for appointing a service provider to conduct a risk analysis regarding information security. Regarding the

missions and functions of the DPO for (the concerned school of) the defendant, the latter refers, for example, to the opinions and presentations prepared and transmitted by the e-gov support service.

- Regarding the responsibility/documentation obligation/recording and examination of incidents (Article 5, paragraph 2 and Article 33, paragraph 5 of the GDPR): the defendant refers to the aforementioned argumentation concerning this finding. The defendant also attaches excerpts from the register of processing activities, in accordance with Article 30 of the GDPR.

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- In conclusion, the defendant specifies that it has undertaken numerous actions and mobilized significant financial and technical resources to meet the high obligations of the GDPR. The defendant asserts that if the DPA deemed that the defendant was not sufficiently meeting the obligations of the GDPR, it requests, in any case, the favor of suspension, based on Article 100, § 1, 3 of the LCA.

I.4. The hearing before the Litigation Chamber

30. On April 21, 2023, the Litigation Chamber decides to organize a hearing ex officio in the present case, based on Article 52 of the Internal Rules of the Data Protection Authority.

31. The hearing takes place on June 6, 2023. At the hearing, both complainants are present in person, as well as their lawyer. The defendant is represented by its two lawyers, its DPO (from the external e-gov support service), and the current director of the concerned school of the defendant.

32. During the hearing, the complainants reiterate their grievances. The complainants emphasize the absence of apologies and rectifications.

33. Then, the defendant's lawyer further explains the conclusions. On this occasion, the lawyer offers apologies on behalf of their client.

34. The members of the Litigation Chamber then address some questions to the defendant. In this context, the defendant's DPO explains, among other things, that the support service provides a pool of experts in privacy compliance and that the support service also includes an information security unit. The DPO also states that for carrying out the missions, the main contacts occur with an IT collaborator of the defendant and that 120 hours per year are allocated for all activities of the defendant. However, it is emphasized that several aspects - for example, aspects related to knowledge concerning municipal privacy statements and their drafting - are managed "at the group level." Furthermore, the DPO explains that no direct contact has taken place with the municipal administration itself for activities related to the DPO and that it is customary, in the case of the defendant, to report directly to the IT collaborator, as DPO.

II. Motivation

II.1. The qualification of the defendant as the data controller

35. Throughout the proceedings, the defendant has identified itself as the data controller and has also always been contacted in this capacity regarding the facts (notably by the Inspection Service). This applies to all processing activities carried out by

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the school. However, this does not mean that it is entirely clear that the defendant, as a municipality, is in any case the data controller in all matters concerning the municipal school.

36. In accordance with the legislation (specifically Article 4, paragraph 7 of the GDPR) and according to the consistent case law of the Court of Justice, it is indeed necessary to evaluate in practice whether a specific actor (which may be a natural person or a legal entity, but also a public authority, service, or another body) determines the purposes and means of processing personal data. The European Data Protection Board ("EDPB") has already clarified in this regard that the effective power of this actor over the processing of personal data can, in particular, be inferred from a legal provision, but also from an actual influence that the actor exerts on the processing activity(ies).

37. Regarding the facts relevant to the scope of the complaint, it appears that the director of the defendant's school - after consultation or not within the school and with instructions that remained limited to the school's staff - decided on his own initiative to place certain documents he had received

from the defendant on the Smartschool platform. In this sense, the director of the defendant's school acted without instruction to publish the documents from the defendant. Moreover, the director may have implicitly inferred from the content of the documents that the defendant would have preferred that these documents not be published on Smartschool.

38. All of this does not imply that the defendant could bear no responsibility regarding the processing related to the facts that occurred within the framework of the complaint. Article 4, paragraph 7 of the GDPR indeed establishes that the purposes and means may be determined solely or jointly with others. This could also be the case if the director did not have an explicit mandate to publish the documents and acted on his own initiative, as the EDPB has also confirmed: "Consequently, an organization can still be responsible for processing, even if it does not make all decisions regarding the purposes and means." Indeed, the fact that an organization, as a defendant, has not given any general instruction or

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concerning the integrity of the documents it transmitted could place (part of) the responsibility for processing in the hands of the defendant.

39. Hic et nunc, however, it is not appropriate to analyze and determine the exact roles and responsibilities in this matter, as the Contentious Chamber will proceed to a dismissal of the elements within the framework of the complaint. Outside the framework of the complaint, however, findings have been made by the Inspection Service that explicitly concern the defendant as the data controller. This is why there is no doubt that the defendant acts as the data controller for these elements, including for the activities concerning its school.

II.2. Regarding the findings within the framework of the complaint

40. Based on the elements of the file of which it is aware and the powers conferred upon it by the legislator under Article 100, § 1 of the LCA, the Contentious Chamber decides on the course to be taken regarding the file; in this instance, the Contentious Chamber proceeds to dismiss part of the complaint, in accordance with Article 100, § 1, 5° of the LCA, based on the following reasoning.

41. In the event of a dismissal, the Contentious Chamber must conduct a step-by-step examination and reasoning as specified below:

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the absence of sufficient prospects for a conviction leads to a dismissal for technical reasons;

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a conviction is technically feasible but prosecution is not desirable for reasons of public interest, leading to a dismissal for reasons of opportunity.

If a dismissal is made on the basis of more than one reason, the reasons for dismissal (respectively a dismissal for technical reasons and a dismissal for reasons of opportunity) must be addressed in order of importance.

42. In the present case, the Contentious Chamber considers that it is technically impossible to pursue certain elements of the file that are based on the complaint and decides to proceed with a dismissal for technical reasons based on the reasons outlined below.

43. Based on the findings in the Inspection Service's investigation in this case (see annex), it appears that the Contentious Chamber is not competent *ratione temporis*, given that based on the facts and grievances raised in the complaint, it emerges that the complaint concerns processing that began before May 25, 2018, and that the processing in question also ended before this date.

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44. It is correct that the complaint was initially declared admissible by the Frontline Service of the APD and that an investigation by the Inspection Service also took place subsequently regarding the facts. Nevertheless, the Contentious Chamber has always maintained that it is not competent to conduct enforcement action for facts that occurred exclusively before May 25, 2018.

45. For the Contentious Chamber to be competent, it is necessary for the GDPR to apply to the processing subject to the complaint. According to Article 4, paragraph 2 of the GDPR, the processing of personal data is: "any operation or set of operations performed or not by automated means and applied to personal data or sets of personal data, such as collection, recording, organization,

structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

46. The processing in this case and their date of incidence can be summarized as follows:

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The first incident: a publication of personal data on Smartschool on November 23, 2017, at 10:58 AM. This is a publication of a series of minutes from the college, including two minutes dated February 12, 2015, and March 30, 2015, which concern the first complainant. The minutes of February 12, 2015, concern information about the disciplinary investigation that was initiated against the first complainant and contain incriminating statements. After the complainant requested the deletion of the minutes, they were removed from Smartschool on May 9, 2018;

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The second incident: a publication of a survey conducted among students dated December 15, 2017, on Smartschool (publication date: January 22, 2018). The second complainant reportedly noticed the publication on the same day and immediately sent an email to the then-director. It appears from a communication between the Inspection Service and the complainants that the survey conducted among students that was published was deleted on the same day.

47. The Contentious Chamber notes that the aforementioned processing took place before the entry into force of the GDPR on May 25, 2018. Furthermore, it emerges from the findings of the Inspection Service that the processing of personal data related to the two incidents did not occur after the entry into force of the GDPR on May 25, 2018. The publications were indeed removed from Smartschool on May 9, 2018, and January 22, 2018. Based on the inspection report and the documents, the Contentious Chamber cannot find that processing concerning the subject of the present complaint took place after May 25, 2018.

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48. In light of the above, the Contentious Chamber proceeds with a dismissal for technical reasons⁹ and, as a result, no further action can be taken on this complaint, given the absence of a violation of the GDPR. For the sake of completeness, the Contentious Chamber notes that it is not within its competence to grant compensations.

II.3. Regarding findings outside the scope of the complaint

49. Despite the dismissal for technical reasons concerning the subject of the complaint, the Contentious Chamber examines the findings of the Inspection Service outside the scope of the complaint.

50. It is indeed not excluded that a complaint may lead to a more comprehensive and substantial review by the Inspection Service, which is also confirmed by the Market Court.¹⁰

51. In this context, the Contentious Chamber first positively acknowledges the cooperation of the defendant throughout the procedure before the Data Protection Authority, with the defendant constructively recognizing that certain mistakes were made in the past or that certain aspects (for example, regarding the privacy policy and the confidentiality statement) did not fully comply with the legislation, and indicating how it has corrected or would correct this situation in the future. In this regard, it particularly highlighted the recording of incidents and the review of incidents (see also below).

52. Nevertheless, the Contentious Chamber generally notes that several elements in the file indicate a structural lack of attention and resources for guarantees regarding the right to data protection.

Although an external e-gov support service provides the necessary expertise (in this area concerning the use of pools of experts) to carry out the tasks related to the DPO and provides an external DPO, the time and resources (human) available to seriously perform the tasks are too limited.

⁹ See point 3.1.1.4 of the Contentious Chamber's Policy on Dismissals, published on the website of the DPA on June 18, 2021 (<https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>).

¹⁰ "Companies must, however, be aware that a single determined incident may lead to a comprehensive inspection and substantial review of a company or organization's compliance with the

GDPR, which in turn may lead to sanctions for non-compliance with certain obligations of the GDPR that were not initially the trigger for the inspection.” [Translator's note: free translation made by the translation service of the General Secretariat of the DPA, in the absence of an official translation] See the judgment of June 14, 2023, Brussels Court of Appeal (Chamber 19A, Market Court Section), No. 2023/4583, 29-30.

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II.3.1. The designation of the DPO and the exercise of the DPO's missions as provided by law (Articles 37 and 39 of the GDPR)

II.3.1.1.

Regarding the designation of a data protection officer in accordance with Article 37 of the GDPR

53. In its report, the Inspection Service highlighted several inaccuracies regarding the identity of the DPO:

- The complainants' lawyer stated that no data protection officer had been designated;
- Article 4.2.6 of the school regulation specified that the municipal administration had designated an additional consultant to act as an information security advisor and data protection officer. After June 2, 2019, this provision was removed from the regulation, without specifying the reason for the necessity of this removal;
- There was also reference to an employee of company Z who was said to have been designated as DPO. Company Z provides, according to its website, "objective advice" through its DPOs. According to the Inspection Service, several inaccuracies remained regarding the designation of an employee of the external e-gov support service as DPO:
- No decision of designation from the College of Mayors and Aldermen has been communicated, so that the DPA could verify from which date the defendant mandated company Z, whether this mission is temporary, and which tasks were or were not included in the service;
- No registration code has been provided for the registration of the DPO;
- The DPA has not received further information on the qualifications of the aforementioned employee of the e-gov support service as required by Article 37, paragraph 5 of the GDPR;
- According to Article 37, paragraph 3 of the GDPR, a data controller may designate a DPO for several authorities and bodies. However, the GDPR requires that the data controller take into account the "organizational structure and size" in this context. The question arises as to whether, in this specific case, the DPO of a municipality with 15,000 to 20,000 inhabitants can also operate sufficiently independently and expertly as a DPO for both two municipal schools and the municipal administration. The processing is carried out

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in the context of a community of schools with 3,000 to 4,000 students that exceeds the municipality, which can have consequences for the handling of incidents and the more efficient use of resources, including the allocation of teachers.

54. Regarding the appointment of the DPO, the defendant refers to the awarding of the contract for the e-gov assistance service (document 5 of the defendant's file). Document 6 of the defendant concretely proves the appointment of a DPO for the defendant, as approved during a session of its Municipal Council on November 25, 2019. It appears from document 7 that the defendant submitted a request for the approval of an employee within the e-gov assistance service as a security advisor to the Vlaamse toezichtcommissie voor het elektronische bestuurlijke gegevensverkeer (hereinafter "VTC", Flemish Commission for the Control of Electronic Administrative Data Exchange).

55. The Litigation Chamber refers to Article 37, paragraph 1, point a) of the GDPR, which states that data controllers are required to appoint a data protection officer when processing is carried out by a public authority or body, which is the case here. It can be inferred from the documents submitted by the defendant that it had not appointed a DPO before November 25, 2019. Given that there has been an obligation to appoint a DPO since the GDPR came into force (on May 25, 2018), it is therefore unacceptable that the defendant only appointed a DPO one year later.

56. Regarding the publication of contact details and the communication of these details to the

supervisory authority, the Litigation Chamber specifies that at the time of the Inspection Service's investigation, the defendant provided no evidence of a registration of the DPO with the Data Protection Authority (DPA).

57. For all these reasons, the Litigation Chamber finds a violation of both Article 37, paragraph 1, point a) and Article 37, paragraph 7 of the GDPR, given that the mandatory appointment of the DPO was not carried out correctly (as evidenced by the absence of an appointment order or any other administrative decision in this regard) and was also not properly notified to the Data Protection Authority.

11 For the definition of "public authority," see Article 5 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, which defines a public authority as "1° the federal state, the federated entities, and local authorities; 2° legal persons under public law that depend on the federal state, federated entities, or local authorities; 3° persons, regardless of their form and nature, who:

- have been created to specifically meet needs of general interest that are not industrial or commercial in nature; and
- are endowed with legal personality; and
- whose activity is either predominantly financed by the public authorities or bodies mentioned in 1° or 2°, or whose management is subject to control by these authorities or bodies, or more than half of the members of the governing, management, or supervisory body are appointed by these authorities or bodies; 4° associations formed by one or more public authorities referred to in 1°, 2°, or 3°."

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II.3.1.2.

Regarding the tasks of the Data Protection Officer in accordance with Article 39 of the GDPR

58. The Contentious Chamber notes that there were several issues that persist regarding the Data Protection Officer (DPO) and (the possibility of exercising) the performance of certain tasks by this person.

59. The essence of several issues that the Inspection Service has been able to observe seems to bring us back to the fact that the DPO - or at least the service that de facto carries out the tasks of the DPO - does not receive sufficient resources in this case to advise the data controller in order to take the necessary safeguards regarding the right to data protection that must be provided to assist and support the data subjects in their rights on the one hand, and to avoid violations of legislation related to data protection on the other hand.

60. It emerges from the findings of the Inspection Service in this regard that the Inspection Service does not find or has not received any indication that the tasks more specifically as defined in Article 39, paragraph 1, points b), d), and e) of the GDPR are being properly performed. There is also no clear agreement, according to the Inspection Service, between the administration of the defendant and the external e-gov support service. Furthermore, it appears from the file that there has been no direct contact between the administration of the defendant and the external e-gov support service. There would have only been structural contacts with the IT manager of the defendant.

61. Moreover - but without this having any impact on the assessment of the findings of the Inspection Service outside the framework of the complaint - it can be stated here that even the facts that occurred within the framework of the complaint reveal situations presenting a structural approach that is not optimal and concerns for data protection.

62. Although during the hearing, the defendant rightly points out that the case has a long procedural delay, their statements - and those of their DPO - demonstrate, during the hearing, that the structural shortcomings at the level of data protection still persist:

- a. The number of hours that the external DPO has to perform the tasks required by the GDPR is completely insufficient to meet the requirements of the GDPR. According to their own statements, this amounts to 120 hours on an annual basis for the entire municipality and all its services.
- b. The DPO has (still) little or no contact with the municipal administration of the defendant, not to mention that the municipal administration does not consult him structurally or invite him to provide opinions. However, the defendant constitutes a public authority, to which the legislator explicitly

imposes, in Article 37, paragraph 1, point a) of the GDPR, the obligation to designate a Data Protection Officer, indicating that the legislator believes that this function is essential.

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crucial in the context of public services, and a DPO must have access to the highest level of management in order to properly carry out their duties.

c. Furthermore, the defendant itself asserts in its conclusions that as a municipality, it offers much more than just education, which means that it processes a large amount of personal data from a significant number of data subjects. It refers to services at the social and cultural level, as well as services related to sports, youth, housing, and the environment.¹² This may also involve sensitive personal data in this context. The limited budget-time and restricted access to the administration for the DPO pose a problem in this regard.

d. The defendant acts as the data controller for the activities of the concerned school (and other educational institutions) but generally only provides access through the DPO to its IT manager. In the event of incidents, however, there would indeed be consultation with the relevant staff or managers. A whole series of aspects related to data protection do not take into account IT-related aspects, implying that incidents must be examined, analyzed, and rectified at a more structural level. Thus, a DPO who does not have access to certain institutions (which fall under the responsibility of the defendant), due to the absence of contact points within these institutions and the lack of time to establish contacts with such institutions on their own initiative, can hardly identify and appropriately address the risks related to the right to data protection of such institutions (and assist in mitigating them if necessary).

63. Each of the elements listed in the previous paragraph leads to the finding of a violation of Article 39, paragraph 1 of the GDPR, as it emerges from these points that the data controller does not sufficiently ensure the proper exercise of the DPO's duties. Therefore, the Contentious Chamber finds - also based on the findings of the Inspection Service on this point - that the defendant has not complied with the obligations set out in this provision and that it does not sufficiently guarantee that its DPO can properly carry out the duties as enumerated in Article 39, paragraph 1 of the GDPR.

64. For this reason, the Contentious Chamber orders that the defendant draft an action plan (below) within three months, taking into account the violations identified in this decision and more specifically the specific aspects of its services as well as the specific contact points in this regard.

¹² Defendant's reply conclusions, p. 5.

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II.3.2. Findings of the Inspection Service regarding the monitoring, documentation, and notification of incidents (Article 5, paragraph 2 and Articles 32 and 33 of the GDPR)

65. The obligation for a data controller to implement security measures for certain processing activities—paying attention to the associated risks—is outlined in Article 32 of the GDPR. The obligation to record and notify incidents related to personal data is specified in Article 33 of the GDPR. The responsibility of a data controller is stated in Article 5, paragraph 2 of the GDPR.

66. In its inspection report, the Inspection Service addresses how (the school of) the defendant handles the two incidents. Given that the Litigation Chamber is *ratione temporis* incompetent to rule on facts that occurred before May 25, 2018, it cannot rule on the resolution of the two incidents that took place before the GDPR came into effect.

The Litigation Chamber is aware that the legal predecessor of the DPA (the Commission for the Protection of Privacy, hereinafter "CPVP") had provided, since June 10, 2014, a notification form for reporting personal data breaches (outside the telecommunications sector, as there was already a legal obligation to notify for that purpose). The CPVP had also stated in a press release dated June 10, 2014, that the use of this notification form was "more than advisable." However, the Litigation Chamber emphasizes the optional nature of the notification obligation prior to the entry into force of the GDPR.

67. The Inspection Service further stated that it emerged from communications with the defendant that during a certain period after May 25, 2018, it was still not recording incidents. The Litigation Chamber considers itself competent to rule on this matter, given that the GDPR indeed applies to these facts. Proper recording of incidents is very important, especially in light of the size of the educational institution (3,500 to 4,000 students) but also in light of the risk-based approach under Article 32 of the

GDPR. Indeed, in this case, it also involves the processing of sensitive personal data as defined in Article 9 of the GDPR (e.g., data concerning health (mental) and transgressive sexual behaviors, ...). The processing also concerns data of vulnerable individuals (namely minors) and involves data processing that entails an increased risk for the individuals concerned.

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Rights and freedoms of the data subjects (services, assessments, and potential disciplinary assessments of teachers, ...).

68. The defendant specifies in its conclusions of January 17, 2020, that since the entry into force of the GDPR, it has only faced one incident. This was a case of hacking of a single inbox, which may have potentially allowed the leak of data from 500 individuals. The defendant clarifies that this incident was immediately recorded in the incident register and was notified to the Data Protection Authority within the legal timeframe. In this regard, it provides supporting documents to substantiate this argument. These documents prove the registration of the incident in the incident register, the notification of this incident on October 16, 2019, and the solution found (namely, the modification of passwords for all affected users by October 17, 2019).

69. Due to the lack of evidence, the Disciplinary Chamber cannot verify whether the defendant has indeed only faced one incident since the entry into force of the GDPR. Furthermore, the Disciplinary Chamber cannot verify how long the defendant has actually been using an incident register. The Disciplinary Chamber can only conclude that regarding the sole incident that occurred after the entry into force of the GDPR, the defendant has correctly complied with the obligations set out in Article 33 of the GDPR.

70. Nevertheless, the defendant did not respond to the question from the Inspection Service on September 6, 2019, when it asked whether, in the meantime, an incident register had been maintained in view of the notification obligation under the GDPR. The defendant indeed responded that "there had been no further incidents." In reality, this may be correct given that in its conclusions of January 17, 2020, the defendant states that there was only one incident after the entry into force of the GDPR (namely on October 16, 2019). However, it could not be inferred from this response that the defendant had, in the meantime, maintained an incident register that met the requirements of Article 33, paragraph 5 of the GDPR. Given that the defendant cannot satisfactorily justify that it has complied with the obligation for adequate incident registration, the Disciplinary Chamber finds a violation of accountability as defined in Article 5, paragraph 2 of the GDPR. However, the file does not present sufficient elements to establish a violation of either Article 32 or Article 33 of the GDPR.

II.3.3. Findings of the Inspection Service regarding the information obligation (Article 13, paragraph 1, point a) of the GDPR)

71. Article 13, paragraph 1, point a) of the GDPR requires that the data controller provides information to the data subject about the identity and contact details of the data controller and, where applicable, the representative of the data controller. Regarding the information requirement, the Guidelines of the Article 29 Working Party on data protection...

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specifies that "This information should allow for easy identification of the data controller and promote various forms of communication with the data controller."¹⁷

72. The Inspection Service draws the attention of the Litigation Chamber to a combination of indicators from which it appears, at the time of the Inspection Service's investigation, that the defendant is violating its information obligation regarding the designation of the data controller:

- Thus, there are several provisions in different documents that each refer to other persons and services.
- The school regulations of the disputed school do not contain any specific details.
- The link "privacy policy" on the website of the disputed school: The user is automatically redirected to the "privacy statement [of the municipality]" on the defendant's website.
- Point 2 of the privacy statement "who can you contact if you have questions" refers to the municipal administration. However, this privacy statement also specifies "You can direct your questions about the privacy policy and the measures taken directly to the general director V via the email address [...], both for the municipality and for the CPAS and/or to our data protection officer via the email address

[...]."

73. The defendant acknowledges in its conclusions that the original privacy statement was not clear and was incomplete regarding the information obligation set out in Article 13, paragraph 1, point a) of the GDPR. However, on November 22, 2019, this situation was rectified by the publication of a new privacy policy on the defendant's school website. In this new privacy policy, the municipal administration of the defendant is clearly designated in Article 2 as the data controller. However, the rectification of the violation of Article 13, paragraph 1, point a) of the GDPR does not negate the fact that a violation may have occurred in the past.

74. In light of the above considerations, the Litigation Chamber asserts that the defendant did not fulfill the information obligations prior to November 22, 2019, regarding Article 13, paragraph 1, point a) of the GDPR. Consequently, the Litigation Chamber finds a violation of the information obligation set out in Article 13, paragraph 1, point a) of the GDPR.

17 Article 29 Working Party on Data Protection, Guidelines on Transparency under Regulation (EU) 2016/679, April 11, 2018, p. 42.

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II.4. Action Plan

75. Through this decision, the Litigation Chamber orders the defendant to draft an action plan to bring its processing activities into compliance with the GDPR. This action plan must be submitted to the Data Protection Authority within three months of the notification of this decision.

76. The Litigation Chamber has noted several violations of the GDPR above. An action plan that brings the processing activities into compliance with the legislation, following this decision, must at least address the following aspects:

- a. Regarding the violations of Article 37, paragraph 1, point a) and Article 37, paragraph 7 of the GDPR: the manner in which the DPO is designated, how this designation is monitored, and the allocation of responsibility for notifying this DPO to the DPA;
- b. Regarding the violation of Article 39, paragraph 1 of the GDPR: the analysis of an adequate and appropriate framework for the DPO, concerning the exercise of their duties for the defendant, taking into account in particular the time budget of this DPO for the specific activities of the defendant and its services. Furthermore, it must also examine how adequate direct access can be granted to the DPO at the highest decision-making level, if necessary within the framework of reporting or advisory duties so that these duties can be carried out properly;
- c. Regarding the violation of Article 5, paragraph 2 of the GDPR: drafting internal policies to adequately grant access to the Data Protection Authority and its services when legally required, with particular attention to cooperation in the event of personal data breaches;
- d. Regarding the violation of Article 13 of the GDPR: drafting policies that serve to properly fulfill the information obligation, with structural policies regarding the periodic monitoring of statements (data protection or privacy) and other related documents, as well as ensuring the quality of the content of the statements and other documents.

II.5. Publication of the Decision

Given the importance of transparency regarding the decision-making process of the Litigation Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identification data of the parties be directly communicated.

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Pursuant to Article 108, § 1 of the LCA, this decision may be appealed to the Market Court within thirty days from its notification, with the Data Protection Authority as the defendant.

(signed) Hielke Hijmans

President of the Litigation Chamber

FOR THESE REASONS,

the Litigation Chamber of the Data Protection Authority decides, after deliberation:

- to dismiss the elements that are part of the complaint, pursuant to Article 100, § 1, 1° of the LCA;

- pursuant to Article 100, § 1, 9° of the LCA, and in light of the violations of Articles 5, paragraph 2; 13; 37, paragraph 1, point a); 37, paragraph 7; and 39, paragraph 1 of the GDPR, to order the defendant to bring its processing activities into compliance with the GDPR, and for this purpose to submit an action plan to the DPA within three months following the notification of this decision.